Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

By virtue of the authority vested in me by an Act of Congress entitled "An Act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, Two Hundred and Eighty-eight (288) shares of common stock of The Shults Bread Company, a corporation organized under the laws of the State of New York, of the par value of One Hundred Dollars ($100.00) each, One Hundred and Forty-four (144) of which said Two Hundred and Eighty-eight (288) shares were heretofore seized by the Alien Property Custodian under the provisions of the said Act as the property of Emelia (Emelie) Allmers, of Sanstett (Sandstedt), Germany, and One Hundred and Forty-four (144) of which were heretofore seized as aforesaid as the property of Edward (Eduard) Hildebrand, likewise of Sanstett (Sandstedt), Germany.

My reasons for the foregoing determination and order are:

(a) That property such as that herein described cannot usually be sold to advantage at public sale after public or other advertisement.

(b) That the United Bakeries Corporation, of Chicago, Illinois, has made to the Alien Property Custodian two offers for the purchase of the said Two Hundred and Eighty-eight (288) shares of common stock of The Shults Bread Company, namely, (1) to pay in cash Twenty-eight Thousand and Eight Hundred Dollars ($28,800.00), being One Hundred Dollars ($100.00) per share, plus interest thereon at the rate of eight per centum (8%) per annum from the first day of October, 1922, to the date of payment, or, (2) to pay Four Thousand and Three Hundred Twenty Dollars ($4,320.00) in cash, with interest thereon as aforesaid from the first day of October, 1922, and to give Two Hundred and Eighty-eight (288) shares of preferred and One Hundred and Forty-four (144) shares of common stock of the said United Bakeries Corporation.

(c) That the all cash offer above mentioned for the said Two Hundred and Eighty-eight (288) shares of common stock of The Shults Bread Company is deemed to be advantageous and to afford a more certain preservation of the interests of the two Trusts involved.

(d) That the said Emelia Allmers and Edward Hildebrand have expressed their assent to the sale of the said Two Hundred and Eighty-eight (288) shares of common stock of The Shults Bread Company for Twenty-eight Thousand and Eight Hundred Dollars ($28,800.00) plus interest thereon at the rate of eight per centum (8%) per annum from the first day of October, 1922, to the date of payment as hereinabove mentioned.

(e) That an attempted sale at auction would be a useless formality and would involve unnecessary expense, delay and inconvenience, which should be avoided.

WARREN G HARDING

THE WHITE HOUSE,
May 9, 1923.

[No. 3838.]